112	Providence Capital Funding Inc v. Montejano 2024-01384853	**MOTION FOR ATTORNEY FEES - GRANTED** Plaintiff, Providence Capital Funding, Inc. ("Plaintiff" or "Providence"), moves for an order granting attorneys' fees in the total amount of $22,758.90, following entry of Judgment against Defendants Jesus Espinoza Montejano ("J. Espinoza") , Leticia Espinoza ("L. Espinoza"), and Avina Produce, Inc. ("Avina") (collectively, "Defendants") on Plaintiff's Complaint. The requested attorneys' fees in the amount of $22,758.90, consists of $21,771.40 plus an additional $987.50 in attorneys' fees incurring in preparing the instant motion. No opposition has been filed. **<u>Entitlement to Attorney's Fees</u>** "[E]ach party to a lawsuit is responsible for his or her own attorney's fees in the absence of an agreement between the parties for fees or a statute specifically authorizing fees. [Citations.]" (Pederson v. Kennedy (1982) 128 Cal.App.3d 976, 979.) Under Code of Civil Procedure section 1032, attorney's fees are recoverable as costs when authorized by contract, statute or law. (Code Civ. Proc. § 1033.5(a)(10)(A)-(C).) Civil Code section 1717, subdivision (a) provides, in part: "In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." Civil Code section 1717(b)(1) states: "The court, upon notice and motion by a party, shall determine who is the party prevailing on the contract for purposes of this section, whether or not the suit proceeds to final judgment. Except as provided in paragraph (2), the party prevailing on the contract shall be the party who recovered a greater relief in the action on the

			contract. The court may also determine that there is no party prevailing on the contract for purposes of this section." (Civil Code § 1717(b)(1), emphasis added.) " 'To determine whether an action is on the contract, we look to the complaint and focus on the basis of the cause of action [Citations.] Any action that is based on a contract is an action on that contract regardless of the relief sought.' [Citations.]" (Yoon v. Cam IX Trust (2021) 60 Cal.App.5th 388, 392-393.) "California courts liberally construe the term 'on the contract' in Civil Code section 1717. [Citation.]" (Id. at p. 393.) "Where an attorney fee clause provides for an award of fees incurred in enforcing a contract, '[i]t is settled that it is irrelevant if the fees were incurred offensively or defensively.' [Citation.]" (Ibid.) Here, Plaintiff filed suit against J. Espinoza for breach of a written Lease agreement for the lease of certain equipment ("Lease"), and against L. Espinoza and Avina for breach of their guaranties of J. Espinoza's obligations under the Lease. (Decl. of Adeline Tungate ("Tungate Decl."), ¶¶ 5-10.) The Court granted Plaintiff's motion for summary adjudication on the causes of action for breach pf the lease, recovery of personal property, and breach of guaranty, and entered judgment against all defendants in the amount of $200,479.23. (Id., ¶¶ 12-13, Ex. 4.) The Lease signed by J. Espinoza contains a fee provision which states, in relevant part: "You agree to reimburse us for all charges, costs, expenses and attorney's fees that we have to pay to enforce this Lease or collect the Obligations under this Lease and in any lawsuit or other legal proceedings which we are required to bring or defend because of your default. You also agree that in the event of a dispute related to or arising out of this Lease, the Lessor [Providence] in such dispute shall be entitled to recover its reasonable attorney's fees and costs." (Tungate Decl., ¶ 6, Ex. 1, Lease § 13.) The Guaranty signed by L. Espinoza states, "[i]f it is necessary for us to proceed legally to enforce this Guaranty, Guarantor … agrees to pay all costs,

			including attorney's fees incurred in enforcement of this Guaranty." (Tungate Decl., ¶ 8, Ex. 2, last paragraph.) The Guaranty signed by Avina states "[Avina] agrees to pay all costs, expenses and attorneys' fees paid or incurred by Lessor [Providence] in endeavoring to enforce the Lease and this Guaranty." (Tungate Decl., ¶ 9, Ex. 3, Guaranty, § 7.) Based on the foregoing, Plaintiff's action was on a contract, i.e., Lease and Guaranties, the fees were incurred to enforce these contracts, and judgment was entered in favor of Plaintiff such that Plaintiff is the prevailing party and is entitled to attorney's fees under the provisions of the Lease and the Guaranties. **<u>Reasonableness of Hours Expended</u>** A court has wide discretion in determining what constitutes reasonable attorney fees. The court typically makes this determination based upon declarations without live testimony. The value of legal services performed in a case is a matter in which the court has its own expertise, and thus may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1096; Padilla v. McClellan (2001) 93 Cal.App.4th 1100, 1107; Syers Properties III, Inc. v. Rankin (2014) 226 Cal.App.4th 691, 698 ["experienced trial judge is the best judge of the value of professional services rendered in his court"].) The determination ordinarily begins with ascertainment of the "lodestar," i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (EnPalm, LLC v. Teitler Family Trust (2008) 162 Cal.App.4th 770, 774; see Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 271-282 [discussing general principles governing attorney fee awards].) The reasonable hourly rate is that prevailing in the community for similar work; but the court may use out-of-area rates when the prevailing party shows it

was impracticable to use local counsel. (In re Tobacco Cases I (2013) 216 Cal.App.4th 570, 582.)

" '[T]he [party] . . . seeking fees and costs " 'bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.' [Citation.]" ' (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1320.)

Here, the motion is supported by the Declaration of Adeline Tungate which attaches the billing invoices for this matter as Exhibit 6.

Plaintiff's counsel provides that Providence has incurred fees for the services of Buchalter from March 2024 through October 2025 in the sum of $21,771.40. (Tungate Decl., ¶¶ 14, 16.) Although Plaintiff's counsel does not set forth the number of hours expended for the two timekeepers for which it seeks fees (Tungate Decl., ¶ 14, Ex. 6.), the Court's review of the billing invoices indicates that Mark M. Scott expended 12.2 total hours, that Attorney Tungate expended 37.8 total hours, and that Patrick Smith expended 0.2 hours. (Ex. 6 to Tungate Decl.) Attorney Tungate declares that the fees were reasonably and necessarily incurred in connection with the prosecution of Providence's rights arising out of the contracts which are the subject of this action. (Tungate Decl., ¶¶ 4, 14.)

The Court finds the hours expended in this case by Attorneys Mark M. Scott and Tungate from its commencement through a motion for summary adjudication, including discovery related tasks, to be reasonably expended. However, no explanation is provided as to the time expended by Patrick Smith. Therefore, the Court deducts 0.2 hours billed by Patrick Smith totaling $14.40.

<u>Reasonableness of Hourly Rate</u>

In determining a reasonable rate for the attorney's services, courts usually consider: (1) the prevailing rate charged by attorneys of similar skill and experience for comparable legal services in the community; (2) the nature of the work performed;

and (3) the attorney's customary billing rates. (See Serrano v. Unruh (1982) 32 Cal.3d 621, 643.)

“In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41.)

Plaintiff seeks fees for two attorneys, Mark M. Scott and Adeline Tungate at hourly rates of $645 per hour and $345-395 per hour, respectively. To support these rates, Plaintiff’s counsel provides that Mark M. Scott is a shareholder with the Buchalter law firm; a Professional Corporation; that from the inception of this case to the present, the standard hourly rate charged by Buchalter for Mark M. Scott’s services on this matter was $645.00; that from the inception of this case to the present, the standard hourly rate charged by Buchalter for Attorney Tungate’s services on this matter was $345.00-395.00; that the rate is the customary rate which the Buchalter firm charges to each of its clients for services; and that their firm sets the rates to be competitive with the other major law firms in the Southern and Northern California areas. (Tungate Decl., ¶ 2.)

Upon review of the billing invoices, it appears that Attorney Tungate’s hourly rate was $345 in 2024, $385 for the January 2025 invoice, and $395 for 2025. The Court finds that the requested rates for Attorneys Scott and Tungate are reasonable and commensurate with the prevailing rates charged by attorneys for comparable legal services within the community of Orange County.

Based on the foregoing, the Court GRANTS attorneys’ fees in the amount of $21,757.

<u>Fees for Fee Motion</u>

“ ‘Prevailing parties are compensated for hours reasonably spent on fee-related issues. (Meister v.

		Regents of Univ. of Calif. (1998) 67 Cal.App.4th 437, 455.) Plaintiff requests an additional $987.50 for 1.5 hours to prepare and draft the instant fee motion and supporting declaration, and 1 hour to attend the hearing on the motion, at $395 per hour. (Tungate Decl., ¶ 15.) The amount of time is reasonably expended and anticipated. The Court GRANTS an additional $987.50 for the instant fee motion. The Court GRANTS Plaintiff's motion for attorneys' fees in the total amount of $22,744.50 ($21,757 + $987.50). Plaintiff failed to comply with California Rules of Court, rule 3.1110(f)(4) which requires that unless submitted by a self-represented party, electronic exhibits include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit. The court cautions counsel to fully comply with the rules of court. Plaintiff to give notice.
114	Zoomlion Heavy Industry Science & Technology Co, Ltd v. Guoqiang 2025-01511982	**APPLICATION FOR RIGHT TO ATTACH ORDER/WRIT OF ATTACHMENT - DENIED** Plaintiffs Zoomlion Heavy Industry Science and Technology Co., Ltd. and Zoomlion Financial Leasing (Beijing) Co., Ltd. ("Plaintiffs") apply for an order granting them a right to attach order and writs of attachment against defendant Fan Guoqiang ("Defendant"). " 'Before an attachment order is issued, the court must find all of the following: (1) the claim upon which the attachment is based is one upon which an attachment may be issued; (2) the applicant has established "the probable validity" of the claim upon which the attachment is based; (3) the attachment is not sought for a purpose other than the recovery upon which the request for attachment is based; and (4) the amount to be secured by the attachment is greater than zero. [Citation.] The plaintiff has the burden of establishing the probable validity of the